

Tentative Ruling
June 22, 2026
Department 22

RIVER RANCH NEIGHBORHOOD ASSOC. V. CITY OF REDDING, ET AL.
Case Number: 210023

Tentative Ruling on Petitioner's Inspection Demand:

This matter was previously on calendar on June 9, 2026 for Petitioner River Ranch Neighborhood Association's ex parte application for an order shortening time for Respondent City of Redding ("City") and Real Party in Interest County of Shasta's ("County") response to Petitioner's demand to inspect property and to compel a property inspection. At hearing, the Court heard argument from the parties regarding the order shortening time, which included a contention by both City and County that the discovery requested is not available to Petitioner in administrative review proceedings brought under the California Environmental Quality Act (CEQA). The Court continued the matter to June 22, 2026 to allow the parties to further brief the threshold issue of whether such discovery is permissible or not in these proceedings. In doing so, the Court granted the shortened time for hearing to the June 22 date, but did not find good cause to grant the shortened time for inspection to the requested date of on or before June 12, 2026.

I. Availability of Discovery

City and County's joint brief in opposition, filed June 15, 2026, relies on the seminal case of *Western States Petroleum Assn. v. Superior Court* (1995) 9 Cal.4th 559 to argue that Petitioner's inspection demand is outside the scope of permissible discovery because it seeks extra-record evidence obtained post-decision that cannot be considered by the reviewing court, and does not fall within one of the specified and narrow exceptions.

Petitioner's reply to the opposition, filed June 18, 2026, argues that the discovery is not prohibited under *Western States* because it seeks a property inspection to document the impacts that the agency's decision, a lease authorizing cattle grazing, may have had on the property in order to preserve the ability to seek restoration, rather than as evidence to be considered during review of the agency's decision. Having reviewed the plethora of case law since *Western States*, the Court agrees with Petitioner that the requested discovery is not prohibited by any legal authority.

There is no dispute among the parties that in CEQA cases, formal discovery is generally not allowed. Judicial review in administrative mandamus actions and quasi-legislative traditional mandamus actions is based on evidence contained in the administrative record or record of proceedings in the matter, and therefore extra-record evidence is generally prohibited. In *Western States*, it was established that evidence outside the record cannot be introduced merely to contradict the evidence the agency relied on or to question the wisdom of a quasi-legislative decision. In other words, extra-record evidence related to the agency's decision is not permitted unless it falls within one of the enumerated and rare circumstances that do not apply in the

present matter. Understandably, since a court cannot consider such extra-record evidence, discovery of such evidence is also mostly impermissible.

Western States, however, does not stand for prohibition of evidence obtained for purposes aside from judicial review of the administrative record. Additionally, subsequent cases including *Golden Door Properties, LLC v. Superior Court* (2020) 53 Cal.App.5th 733, *Consolidated Irrigation Dist. v. Superior Court* (2012) 205 Cal.App.4th 697, and *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690 make clear that discovery may occur in CEQA cases. While the Court agrees with City and County that these cases address discovery pre-decision, not post-decision evidence as in the present case, this Court has not found any authority limiting discovery to evidence of pre-decision issues only. Since Petitioner seeks inspection of the property for the purpose of ascertaining possible environmental damage, adverse change or alteration to the physical environment resulting from the agency's decision, it is not sought merely for evidence to contradict or challenge the agency's determination. The proffered purpose is collateral to the merits of the CEQA claim, as an order of mitigation measures such as restoration is one of the remedies available if a reviewing court finds noncompliance or violation of the requirements under CEQA.

The fact that Petitioner also bases the claim of environmental damage or impact on the merits of the underlying challenge to the agency's decision is irrelevant. This Court will not allow such evidence for purposes of review of the administrative record in this proceeding, as such is the post-decision, extra-record evidence which is squarely prohibited under *Western States*.

The Court concludes that discovery, including a property inspection, is permissible in the present matter. However, as addressed below, prerequisite to a court order compelling inspection is a showing of relevance and that the inspection is reasonably calculated to produce evidence material to the requested relief.

II. Relevance and Relationship to Requested Relief

As all parties noted, discovery must bear a reasonable relationship to the issues in dispute and possess at least potential evidentiary value. Here, Petitioner seeks a property inspection to document possible impacts of agency-approved cattle grazing on the subject property. While restoration and mitigation are possible remedies in CEQA matters, the Court inquires as to how Petitioner would be able to demonstrate a change in conditions from the pre-approval baseline to the post-grazing conditions, and that any such changes were the result of the grazing, so as to make such discovery relevant. The Court will hear further argument on this issue before ruling.

III. Undue Burden

The Court must balance the evidentiary value of the proposed discovery with the burden, expense or intrusiveness, and therefore reserves ruling until hearing further argument on relevance as addressed above. However, the Court notes little to no burden has been identified by the City and County in its briefing, but rather mere concerns and conclusory statements have been offered.